Affidavit – Family law and child support proceedings

Federal Circuit and Family Court of Australia (Family Law) Rules 2021 – RULE **8.15**

Filed in:

☐ Federal Circuit and Family Court of Australia (Division 1)
☒ Federal Circuit and Family Court of Australia (Division 2)
☐ Other (specify) ____

Type of proceedings:

☒ Family law proceedings
☐ Other (specify) _____

Filed on behalf of:

Full name: Jill Blogs

COURT USE ONLY

Client ID _____

File number BRG 1234/2026

Filed at

Filed on

Court location _____

Court date _____

Name of person swearing/affirming this affidavit:

Jill Blogs

Date of swearing/affirming 15/01/2026

Part A About the parties

APPLICANT 1

Family name (as used now)

Blogs

Given names (as required)

Jill

RESPONDENT 1

Family name (as used now)

Blogs

Given names (as required)

Joe

APPLICANT 2

Family name (as used now)

Given names (as required)

RESPONDENT 2

Family name (as used now)

Given names (as required)

What is the contact address (address for service) in Australia for the party filing this affidavit?

You do not have to give your residential address. You may give another address at which you are satisfied that you will receive documents. If you give a lawyer's address, include the name of the law firm. You **must** also give an email address.

1 Family Road

State QLD Postcode 4000

Phone 0411111111

Lawyer's code 1234

Email jill@isaidusaid.com

Part B About the independent children's lawyer (if appointed)

Independent children's lawyer family name	Given names

Firm name

Part C About you (the deponent)

Family name (as used now)	Given names
Blogs	Jill

Gender

☐ Male ☒ Female ☐ X

Usual occupation (if applicable)

Teacher

What is your address?

You do not have to give your residential address if you are concerned about your safety. You may give another address at which you are satisfied that you will receive documents.

1 Family St

State Qld Postcode 4000

Part D Evidence

1. I am the Applicant in these proceedings and the mother of the child, Johnny Blogs, born 14 February 2019 ("Johnny").
2. The Respondent, Joe Blogs ("Joe"), is the father of Johnny.
3. Joe and I met in 2015 and married in 2017.
4. We separated on a final basis on 3 November 2025 after Joe grabbed my throat and tried to choke me for about 7 to 10 seconds.

COMMUNICATION PATTERNS AND UNEQUAL STANDARDS (AUGUST – OCTOBER 2025)

5. In the months leading up to our separation, there was a distinct double standard in our relationship regarding time and responsibility. When Joe made mistakes, I was expected to be understanding. When I made mistakes, I was met with hostility.
6. I am not innocent in this matter, I have sent some emails to Joe that I regret.
7. In May 2024 I called him a "worthless excuse for a parent" and in June 2024 I called him a "fat loser".
8. While those words were inappropriate, the occurred only after prolonged provocation from Joe and were not intended as a genuine personal attack.

Signature of person making this affidavit (deponent)	Signature of witness

9. I also, at times, threatened to withdraw child support. I have spoken to my psychologist about my behaviour and I know now that this was wrong.
10. It is important to view my emails within the context that they occurred – namely, continued, unrelenting, hostile communication from Joe.
11. What is concerning is that Joe's behaviour strays beyond what would be considered "hostile" communication into what is clearly domestic violence.
12. On May 10 2024 Joe send me an email calling me a 'pathetic loser'.
13. On May 28 2024 he threatened to make sure I "never see him again' (meaning Johnny), I was fearful he was going to kill our son.
14. In a very concerning communication from Joe on June 26 2024 he attempt to convince me to commit suicide saying "Maybe you should just disappear, the world would be better off without you.".
15. I have never blackmailed Joe or threatened to make up false claims about him, he is lying.
16. I have never threatened to withhold Johnny from visitation with Joe.

EVENTS OF 1 NOVEMBER 2025 (THE PHONE INCIDENT)

17. On the evening of 1 November 2025, Joe was preparing to go out.

18. I was attempting to repair the tension between us. I commented on his appearance, jokingly saying, "You almost look too good. I don't want all those girls staring at you... save it for me."

19. Joe's response was to talk about buying drinks for his friends.

20. I reminded him of our tight budget. I said, "I don't give you cash so you can spend it on other people." I admit I control the household budget, but this is only because Joe is irresponsible with money.

21. During this conversation, his phone rang. He looked panicked and asked, "Is that my phone?"

22. I looked at the screen. It was a number I did not know. I asked, "Who the [expletive] is this?"

23. Joe claimed it was "just an old friend from school" but refused to elaborate. He then locked himself in the bedroom.

24. I admit that I followed him and knocked loudly on the door. I shouted, "Let me in! Open the [expletive] door!".

25. I acknowledge that knocking loudly on the door may have appeared aggressive. However at the time I was concerned that Joe might have been concealing communications relating to an ongoing affair, which is why I insisted we speak immediately.

26. I was desperate for transparency. Joe characterizes this as violence, but it was the reaction of a wife who has been gaslit for months. I simply wanted him to look me in the eye and tell the truth.

THE ASSAULT ON 3 NOVEMBER 2025

27. On 3 November 2025, Joe was at the matrimonial home. He began interrogating me about a man named "Martin."

28. He asked, "Yesterday while I was in town?" implying I had been unfaithful.

29. I replied, "Martin? I don't know the doctor."

30. Joe screamed, "Sure you do. Young, good-looking, outfitting his sailboat down there? He says you've been staring at him from the window all day."

31. Without warning, Joe struck me across the face with an open hand.

32. As I sobbed, he taunted me, asking if it gave me pleasure to humiliate him.

33. When I tried to answer him, he grabbed my throat and choked me for over a minute.

34. Immediately after releasing my neck, while I was gasping for air, he said in a bizarrely calm voice, "You'll pout and spoil our supper. Our beautiful supper. Just smell the bread."

35. I have video evidence of this assault from the home security system.

CONCLUSION

36. I have never sought to interfere with Joe's access to Johnny and have always been very supportive of their relationship.
37. However now I must admit that Joe has become a safety risk for Johnny.
38. Accordingly, I seek sole parental responsibility. Joe is volatile, controlling, and physically dangerous.

Signature of person making this affidavit (deponent)	Signature of witness

Part E Signature

I ☒ swear / ☐ affirm the contents of this affidavit are true

Signature of Deponent

Place Brisbane Date 15/01/2026

Before me (signature of witness)

Mr A Family-Lawyer
Full name of witness (please print)

☐ Justice of the Peace (JP #)
☐ Notary public
☒ Lawyer
☐ Other authorised person (specify)

This affidavit was ☒ prepared / ☐ settled by ☒ deponent/s ☐ lawyer

PRINT NAME AND LAWYER'S CODE